20041007-0002593 10/07/2004
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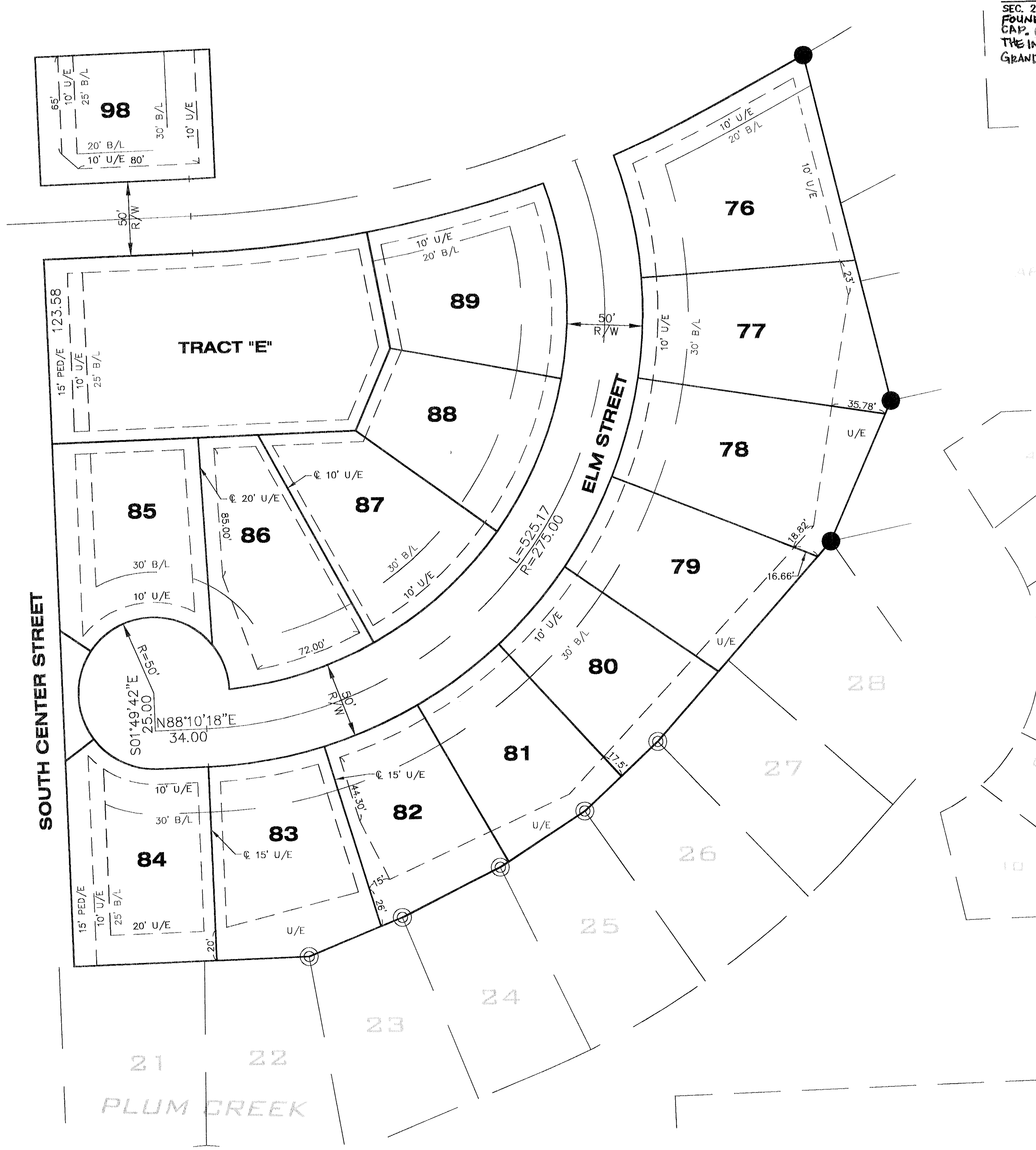
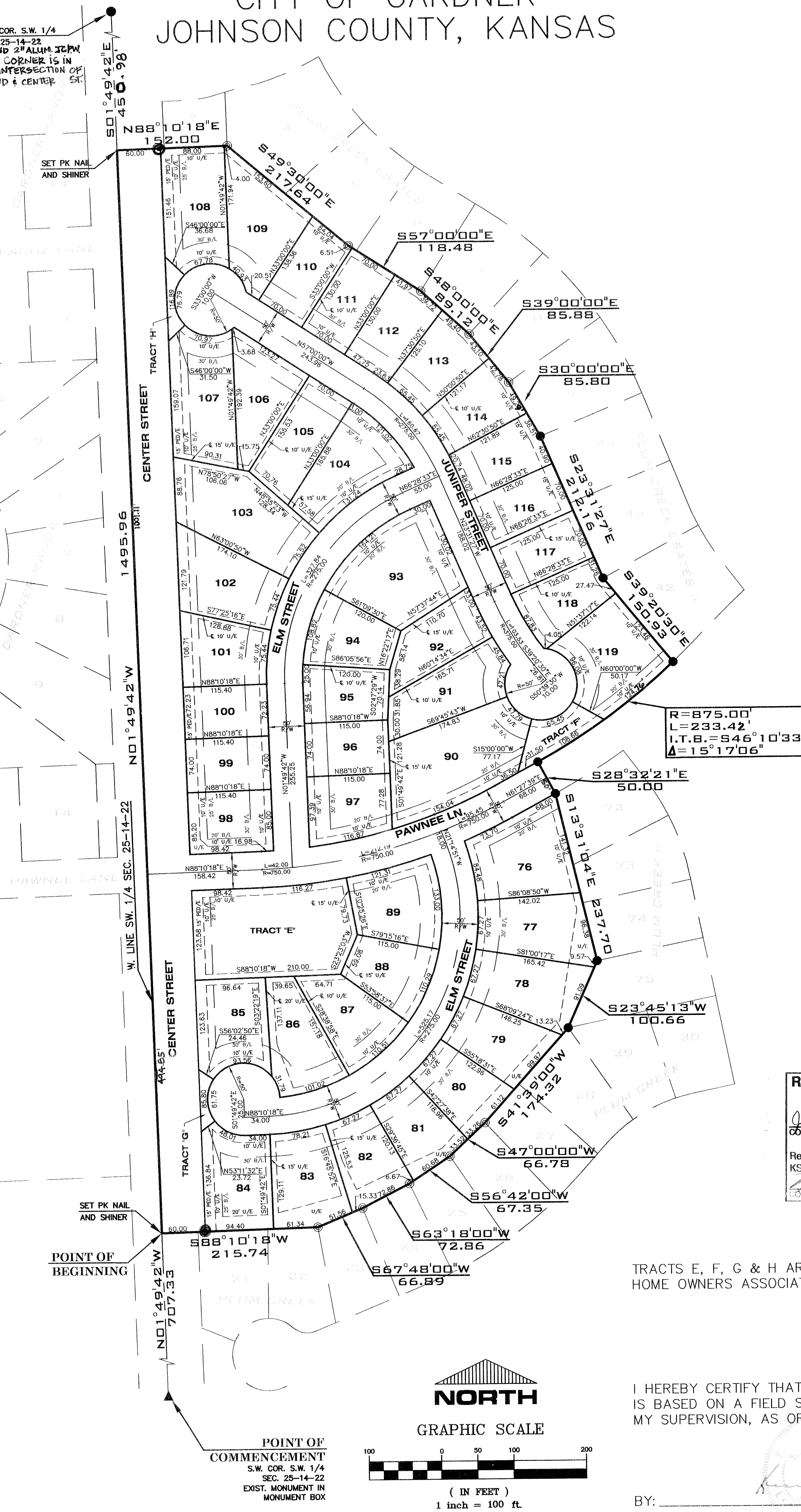
Rebecca L. Davis T20040099162
Johnson Co ROD B:200410 P:002593

FINAL PLAT
OF
PLUM CREEK III
CITY OF GARDNER
JOHNSON COUNTY, KANSAS

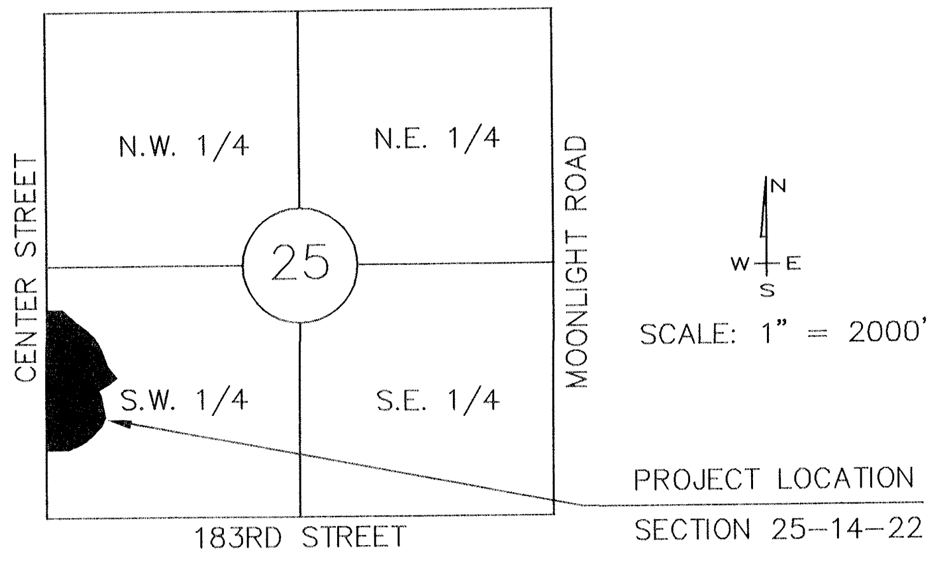


UTILITY EASEMENT DETAIL

NORTH
SCALE: 1" = 60'



VICINITY MAP



PROJECT LOCATION
SECTION 25-14-22

LEGEND

◎	1/2" REBAR 24" IN LENGTH WITH PLASTIC CAP KS. L.S. 93, SET IN CONC.
●	1/2" BAR FOUND (SET IN CONC.)
△	MONUMENT SET
▲	MONUMENT FOUND
B/L	BUILDING LINE
U/E	UTILITY EASEMENT

LOT NUMBERS	LOT AREAS
76	15,318
77	13,062
78	13,186
79	10,894
80	9,706
81	9,651
82	9,868
83	12,352
84	12,731
85	12,264
86	11,953
87	11,134
88	9,896
89	12,690
90	21,901
91	12,385
92	10,294
93	19,921
94	10,040
95	8,957
96	8,510
97	10,227
98	9,830
99	8,539
100	8,335
101	10,848
102	13,980
103	18,551
104	13,907
105	11,249
106	11,372
107	15,704
108	14,652
109	14,325
110	9,365
111	9,100
112	9,838
113	9,725
114	9,577
115	9,071
116	8,750
117	8,750
118	9,268
119	15,549
TRACT E	27,246
TRACT F	4,744
TRACT G	1,047
TRACT H	1,610

This is a survey and subdivision of a part of the West Half of the Southwest Quarter of Section 25, Township 14, Range 22, now in the City of Gardner, Johnson County, Kansas, described as follows: Commencing at the Southwest corner of the Southwest Quarter of said Section 25; thence North 1 degree 49 minutes 42 seconds West, along the West line of the Southwest Quarter of said Section 25, a distance of 707.33 feet, to the point of beginning; thence continuing North 1 degree 49 minutes 42 seconds West, along the West line of the Southwest Quarter of said Section 25, a distance of 1495.96 feet; thence North 88 degrees 10 minutes 18 seconds East, along the South line of Plum Creek Estates, a subdivision of land now in the City of Gardner, Johnson County, Kansas, a distance of 152.00 feet; thence South 49 degrees 30 minutes 00 seconds East, along the Southwesterly line of said Plum Creek Estates, a distance of 217.64 feet; thence South 57 degrees 00 minutes 00 seconds East, along said Southwesterly line, a distance of 118.48 feet; thence South 48 degrees 00 minutes 00 seconds East, along said Southwesterly line, a distance of 89.12 feet; thence South 39 degrees 00 minutes 00 seconds East, along said Southwesterly line, a distance of 85.88 feet; thence South 30 degrees 00 minutes 00 seconds East, a distance of 85.80 feet; thence South 23 degrees 31 minutes 27 seconds East, along the Southwesterly line of Plum Creek Estates II, a subdivision of land now in the City of Gardner, Johnson County, Kansas, a distance of 212.16 feet; thence South 39 degrees 20 minutes 30 seconds East, along said Southwesterly line, a distance of 150.93 feet; thence Southwesterly, along the Northerly right-of-way line of Pawnee Lane as now established, along a curve to the right having a radius of 875.00 feet, an initial tangent bearing of South 46 degrees 10 minutes 33 seconds West, a central angle of 15 degrees 17 minutes 06 seconds a distance of 233.42 feet; thence South 28 degrees 32 minutes 21 seconds East, a distance of 50.00 feet; thence South 13 degrees 31 minutes 04 seconds East, along the Westerly line of Plum Creek II, a subdivision of land now in the City of Gardner, Johnson County, Kansas, a distance of 237.70 feet; thence South 23 degrees 45 minutes 13 seconds West, along said West line a distance of 100.66 feet; thence South 41 degrees 39 minutes 00 seconds West, along the Northerly line of Plum Creek a subdivision of land now in the City of Gardner, Johnson County, Kansas, a distance of 174.32 feet; thence South 47 degrees 00 minutes 00 seconds West, along said Northerly line, a distance of 66.78 feet; thence South 56 degrees 42 minutes 00 seconds West, along said Northerly line, a distance of 67.35 feet; thence South 63 degrees 18 minutes 00 seconds West, along said Northerly line, a distance of 72.86 feet; thence South 67 degrees 48 minutes 00 seconds West, along said Northerly line, a distance of 66.89 feet; thence South 88 degrees 10 minutes 18 seconds West, along said Northerly line, a distance of 215.74 feet, to the point of beginning, containing 17.85 acres more or less.

The undersigned proprietors to the above described tract of land have caused the same to be subdivided in the manner as shown on the accompanying plat, which subdivision and plat shall hereafter be known as "PLUM CREEK III".

The undersigned proprietors of said property shown on this plat do hereby dedicate for public use and public ways and thoroughfares, all parcels and parts of land indicated on said plat as streets, terraces, places, roads, avenues, lanes, and alleys.

An easement or license is hereby granted to the City of Gardner, Johnson County, Kansas to enter upon, locate, construct, and maintain or authorize the location, construction, maintenance and use of conduits, water, gas, sewer, pipes, poles, wires, surface drainage facilities, ducts, cables, etc., upon, over and under these areas outlined and designated on this plat as "Utility Easement" or "U/E", "Drainage Easement" or "D/E" are for storm drainage facilities only. "Sanitary Sewer Easement" or "S/E" are for sanitary sewer facilities only. "Power Easement" or "P/E" are for electrical power facilities only. "Ingress-Egress Easement" or "I-E/E" shall be for pedestrian access only.

The undersigned proprietors of the above described land hereby consent and agree that the Board of County Commissioners of Johnson County, Kansas, shall have the power to release such land proposed to be dedicated for public ways and thoroughfares, or parts thereof, for public use, from the lien and effect of any special assessments, and that the amount of the unpaid special assessments on such land dedicated shall become and remain a lien on the remainder of this land fronting or abutting on such dedicated public ways or thoroughfares.

The undersigned proprietors of said property shown on this plat do hereby dedicate for public use and public way and thoroughfares, all parcels and parts of land indicated on said plat as streets, terraces, places, roads, drives, lanes, avenues and alleys not heretofore dedicated. Where prior easement right have been granted to any person, utility or corporation on said parts of the land so dedicated, and any pipes and wires, conduits, ducts or cables heretofore installed proposed improvements as now set forth, the undersigned proprietors hereby absolve and agree to indemnify the City of Gardner from any expense incident to the relocation of any such existing utility installations within said prior easement.

IN TESTIMONY WHEREOF, Indian Wells Development L.L.C. a Limited Liability Corporation, has caused this instrument to be executed this 5th day of April 2004.

INDIAN WELLS DEVELOPMENT L.L.C., a Limited Liability Corporation

By: ________________
Stephen J. Shumate, Manager

STATE OF Kansas)
) SS:
COUNTY OF Johnson)

BE IT REMEMBERED, that on this 5th day of April, 2004, before me, the undersigned, a Notary Public in and for the County and State aforesaid, came Stephen J. Shumate, Manager of Indian Wells Development L.L.C. a Limited Liability Corporation, who is personally known to be the same person who executed the within instrument of writing, and such person duly acknowledged the execution of the same for himself and for the uses and purposes herein setforth.

JULIE A. NORMAN
Notary Public - State of Kansas
My Appt. Expires 09-15-05

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my notarial seal the day and year last above written.

My Commission Expires: Sept. 15, 2005
Julie A. Norman
Notary Public

APPROVED BY, the Planning Commission of the City of Gardner, Johnson County, Kansas, this 9th day of February 2004.

Chairman – Mark Raney

APPROVED BY, the Governing Body of the City of Gardner, Johnson County, Kansas, this 16th day of February, 2004.

Mayor – Carol Lehman

Attest Gwen Scott
City Clerk – Gwen Scott

REVIEWED

John A. Bartolac 10/6/2004
COUNTY CLERK DATE

Reviewed in accordance with
KSA 58-2001 to 2005
10-5-04
COUNTY ENGINEER DATE

TRACTS E, F, G & H ARE TO BE MAINTAINED BY THE HOME OWNERS ASSOCIATION.

BASIS OF BEARINGS: FINAL PLAT OF PLUM CREEK II

I HEREBY CERTIFY THAT THE INFORMATION SHOWN HEREON IS BASED ON A FIELD SURVEY PERFORMED UNDER MY SUPERVISION, AS OF DATE OF SURVEY: 1-12-04

BY: ________________ DATE: 4/5/04

LS-870

PLUM CREEK III

CIVIL ENGINEERS
LAND SURVEYORS - LAND PLANNERS

Allenbrand-Drews & Associates, Inc.

122 N. WATER STREET
OLATHE, KANSAS 66061
PHONE: (913) 764-1076
FAX: (913) 764-8635

14 W. PEORIA
PAOLA, KANSAS 66071
PHONE: (913) 557-1076
FAX: (913) 557-6904

AD PROJECT #22032 **25-14-22** **FINAL PLAT**